



CHAPTER xxi.

An Act to authorise the mayor aldermen and burgesses of the borough of Hartlepool to acquire the ferry across the harbour at Hartlepool and to maintain improve and work the same and for other purposes. A.D. 1919.
[22nd July 1919.]

WHEREAS the borough of Hartlepool in the county of Durham (hereinafter referred to as "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (hereinafter referred to as "the Corporation"):

And whereas portions of the borough are separated by the old harbour of Hartlepool and the only direct means of communication between those portions is by means of ferrying from the town wall of Hartlepool to the opposite or Middleton shore:

And whereas under or by virtue of the Hartlepool Pier and Port Act 1851 and the Hartlepool Port and Harbour Act 1855 as amended by the Hartlepool Port and Harbour Act 1869 or some or one of these Acts the Hartlepool Port and Harbour Commissioners (hereinafter referred to as "the commissioners") provided on in within and adjoining the town wall of Hartlepool and on the opposite side of the harbour landing-places for passengers and works and conveniences connected therewith and established ferry boats and a ferry for the convenience of passengers by their ferry and in respect thereof they demand and take tolls in accordance with the provisions of the Hartlepool Port and Harbour Act 1855 as amended by the Hartlepool Port and Harbour Act 1869 by which Acts the maintenance and carrying on of the ferry is now regulated:

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And whereas improvements in the ferry and ferry services provided by the commissioners are urgently needed in the public interest and the Corporation being willing to provide the same the commissioners have in exercise of the power in that behalf contained in the Hartlepool Port and Harbour Act 1855 granted a lease of their ferry undertaking and the right to levy tolls in respect thereof to the Corporation :

And whereas it is expedient that such lease be confirmed and that subject to the said lease the ferry undertaking of the commissioners be transferred to the Corporation upon the terms and conditions in this Act contained and that the Corporation be authorised to maintain improve work and regulate the ferry and to levy tolls and charges for the use thereof :

And whereas it is expedient that the Corporation be authorised to borrow money for the purposes of this Act and that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas the ferry undertaking of the commissioners to be transferred to the Corporation includes permanent works and it is expedient that the repayment of the moneys to be paid by the Corporation to the commissioners as consideration for such transfer and the moneys to be raised by the Corporation for and expended upon the improvement of the ferry under the powers of this Act should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Hartlepool Corporation Act 1919.

2. This Act is divided into Parts as follows :—

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Part I.—Preliminary.

Act divided
into Parts.

Part II.—Acquisition of Ferry Undertaking.

Part III.—Maintenance of Ferry Undertaking.

Part IV.—Tolls.

Part V.—Financial and Miscellaneous Provisions.

3. In this Act—

Interpreta-
tion.

“The borough” means the borough of Hartlepool;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The borough fund” and “the borough rate” mean respectively the borough fund and the borough rate of the borough;

“Statutory securities” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“The commissioners” means the Hartlepool Port and Harbour Commissioners;

“The transfer” means the transfer effected by this Act of the ferry undertaking of the commissioners to the Corporation;

“The day of transfer” means the seventh day of November one thousand nine hundred and nineteen;

“The ferry undertaking” means the ferry undertaking of the commissioners by this Act transferred to and vested in the Corporation and the powers rights authorities and privileges by this Act conferred upon the Corporation in connexion therewith and all improvements thereto effected by the Corporation under the powers of this Act;

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“The ferry undertaking of the commissioners” means the ferry or right of ferrying persons across the entrance to the old harbour at Hartlepool between the town wall of Hartlepool and the opposite shore being the Middleton side of the borough and shall include the lands with the ferry house or toll house turnstiles shelter buildings stages steps walls piers and approaches situate on in within and adjoining the town wall of Hartlepool and on the opposite or Middleton shore (except the approach road on the Middleton side leading from the ferry shelter to the public road leading to Middleton and except the wooden lighthouse in which the low leading light on the eastern or Hartlepool side of the ferry is fixed) and shall include the commissioners’ interest in the boat-repairing slipway on the Middleton shore now rented by them from the North Eastern Railway Company together with the boats oars moorings rights of mooring gear equipment and stores belonging to and used and enjoyed by the commissioners in working the ferry and also all rights powers authorities and privileges of the commissioners in respect of the said ferry under the Hartlepool Port and Harbour Act 1855 and the Hartlepool Port and Harbour Act 1869 or some or one of them or any other Acts or Act of Parliament and otherwise.

PART II.

ACQUISITION OF FERRY UNDERTAKING.

Transfer of
ferry under-
taking of
commis-
sioners.

4. As from the day of transfer and subject to the provisions of this Act the ferry undertaking of the commissioners shall be and the same is by virtue of this Act transferred to and vested in and shall be exerciseable and enjoyed by the Corporation freed and discharged from all mortgages debts and financial obligations and liabilities of the commissioners but subject to the existing lease thereof to the Corporation and subject to and with the benefit of the obligations duties powers rights and privileges in or by this Act contained or conferred upon the Corporation in respect thereof.

As to rights
of way over
approach

5. As from the day of transfer the Corporation their officers and servants and all persons going to or coming from

the ferry shall have and may exercise and enjoy in common with the commissioners their successors and assigns and all other persons having the like rights of way over and along the approach road on the Middleton side of the ferry leading from the ferry shelter to the public road leading to Middleton.

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road on
Middleton
side.

6. The consideration for the transfer (hereinafter referred to as "the purchase money") shall be the sum of five hundred pounds and the same shall be paid by the Corporation to the commissioners on the day of transfer. If the purchase money shall not be so paid the Corporation shall pay to the commissioners interest thereon at the rate of five per centum per annum from the day of transfer until payment be made.

Considera-
tion for
transfer.

7. The receipt in writing of three of the commissioners for money paid to the commissioners by the Corporation shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof. Provided that if from any cause the Corporation are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of three of the commissioners.

Receipt for
purchase
money.

8. The production of a King's Printer's or Royal Assent copy of this Act duly stamped together with a receipt for purchase money purporting to be signed by three of the commissioners or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Corporation of the ferry undertaking of the commissioners.

Copy of Act
with receipt
for purchase
money to be
evidence of
transfer.

9. All debts and liabilities incurred by the commissioners in respect of their ferry undertaking and existing on the day of transfer shall be paid and discharged by the commissioners and the purchase money shall be applied by them to that purpose or to any other purpose to which the commissioners are authorised to apply capital money.

Payment of
commis-
sioners'
debts and
application
of purchase
money.

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Pending
actions.

10. If at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing by or against or in favour of the commissioners in respect of the ferry undertaking of the commissioners the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by or against or in favour of the Corporation as and when it might have been continued prosecuted and enforced by or against or in favour of the commissioners if this Act had not been passed but not further or otherwise.

Contracts of
commis-
sioners to be
binding on
Corporation.

11. Subject to the provisions of this Act all purchases sales agreements contracts conveyances deeds and other instruments affecting the ferry undertaking of the commissioners and in force on the day of transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the commissioners the Corporation had been a party thereto.

Corporation
to receive
and have
access to
books &c.

12.—(1) On the day of transfer the commissioners shall deliver to the Corporation all agreements contracts conveyances deeds and other instruments and account and other books documents and papers in their possession relating solely to the ferry undertaking of the commissioners.

(2) After the day of transfer the commissioners shall at all reasonable times when requested by the Corporation afford to the Corporation access to any other books documents and accounts in their possession relating to the same undertaking.

Books &c.
to remain
evidence.

13. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the commissioners shall after the transfer be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Partial
repeal of
commis-
sioners.
Acts.

14. As from the day of transfer the enactments mentioned in the first part of the First Schedule to this Act shall be and the same are hereby wholly repealed and as from the same day the enactments mentioned in the second part of the same schedule shall be and the same are hereby repealed so far as the same relate to the ferry or the ferry undertaking of the commissioners or to the commissioners' powers of ferrying.

PART III.

A.D. 1919.

MAINTENANCE OF FERRY UNDERTAKING.

15. Subject to the provisions of this Act the Corporation may maintain improve work and regulate the ferry undertaking of the commissioners and may in connexion therewith construct build purchase erect fix alter and maintain buildings turnstiles landing-places landing stages pontoons slips row motor steam and other boats oars gear equipment buoys moorings and mooring chains and other appliances and conveniences and do all such things as may be necessary or expedient for the effectual working and maintenance of the ferry and may appoint remove and remunerate such officers and servants as may in their opinion be required for such purposes and may on receipt of the tolls or charges by this Act authorised convey passengers and small parcels across the harbour of Hartlepool Provided that no works or appliances shall be so constructed or fixed by the Corporation under the powers of this Act as to interfere with the navigation of the channel of the harbour.

Power to maintain improve and work ferry.

16. From and after the passing of this Act such of the existing ferry landing-places buildings and works on the eastern or Hartlepool side of the ferry as are not at the passing of this Act situate within the parish of Hartlepool and any works which may be constructed on that side of the ferry under the powers of this Act shall for all purposes be deemed to be situate within the parish and borough of Hartlepool and such of the existing ferry landing-places buildings and works on the western or Middleton side of the ferry as are not at the passing of this Act situate within the parish of Middleton and any works which may be constructed on that side of the ferry under the powers of this Act shall for all purposes be deemed to be situate within the parish of Middleton All the ferry landing-places buildings and works already constructed or to be constructed under the powers of this Act shall for all purposes be deemed to be situate within the borough.

Parishes in which ferry works to be deemed situate.

17. The Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed two acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Power to purchase additional lands by agreement.

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Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

18. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

For protec-
tion of com-
missioners.

19. For the protection of the commissioners the following provisions shall unless otherwise agreed in writing between the Corporation and the commissioners have effect (that is to say) :—

(1) So long as the low leading light in the wooden lighthouse on the eastern or Hartlepool side of the ferry remains in use the Corporation shall maintain the said lighthouse in an efficient state of repair and the commissioners shall maintain in good working order the existing lamp and burner therein or any other lamp or burner which they may substitute therefor. So long as the said lamp and burner are maintained as aforesaid the Corporation shall clean and light and extinguish the lamp in accordance with the reasonable directions of the commissioners and the commissioners shall pay to the Corporation the cost of the gas or other illuminant consumed by the lamp and of any meter used in connexion therewith :

(2) If and so soon as the low leading light shall not be required for the purposes of navigation the commissioners shall remove the wooden lighthouse and shall make good any damage occasioned thereby to the reasonable satisfaction of the Corporation :

(3) So long as the commissioners shall so require the Corporation shall to the reasonable satisfaction of

the commissioners maintain the existing shelter for the ferry light on or near to the landing-place on the western or Middleton side of the ferry and the existing lamp and burner therein or any equally efficient lamp or burner which they may substitute therefor and shall light and extinguish such lamp at such reasonable hours as the commissioners may prescribe:

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- (4) All works and appliances to be constructed or fixed by the Corporation under the powers of this Act on over or in tidal lands below high-water mark of ordinary spring tides shall be carried out in accordance with plans and sections approved by the commissioners and such works shall not be commenced unless and until the commissioners shall have approved such plans and sections Provided that if the commissioners shall not within one month after the receipt of such plans and sections signify to the Corporation in writing their approval with or without alteration or their disapproval thereof they shall be deemed to have approved the same:
- (5) If at any time the Corporation deem it necessary to level pave metal flag channel or tar macadam or otherwise make up the approach road on the Middleton side of the ferry leading from the ferry shelter to the public road to Middleton the commissioners shall pay to the Corporation one half part of the cost thereof or a sum of ninety pounds whichever shall be the less:
- (6) If any difference shall arise between the Corporation and the commissioners with respect to the execution or failure to execute or carry into effect any of the provisions of this section the same shall be referred to a single arbitrator to be appointed in default of agreement by the Board of Trade on the application of either party and such reference shall be subject to the provisions of the Arbitration Act 1889.

20. Subject to the provisions of this Act the Corporation may lease the ferry undertaking upon such terms and for such consideration as the Corporation may think fit Any rent or other consideration reserved upon any lease so granted shall be

Power to
sublet ferry
rights.

A.D. 1919. applied by the Corporation in manner provided by the section of this Act whereof the marginal note is "Revenue and deficiency in respect of ferry undertaking":

Provided that any fine or premium received in respect of such lease shall be applied by the Corporation in or towards repayment of the money borrowed by the Corporation under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided Any surplus remaining after such repayments shall be applied to such purposes being purposes to which capital moneys are properly applicable as the Corporation may think fit.

Sale of
buildings
and plant.

21. The Corporation may sell any land buildings turnstiles pontoons boats gear equipment buoys chains and other appliances belonging to them in connexion with the ferry undertaking at such times in such manner and upon such terms as they may think fit and any money arising from such sale shall be applied by them in or towards repayment of the money borrowed by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided Any surplus remaining after such repayment shall be applied to such purposes being purposes to which capital moneys are properly applicable as the Corporation may think fit.

PART IV.

TOLLS.

Ferry tolls.

22. From and after the transfer the Corporation may demand receive and recover for the conveyance across the harbour of passengers and small parcels in any vessel or boat belonging to or provided by the Corporation any tolls (in this Act called "ferry tolls") not exceeding in respect of each crossing either way one penny for every passenger and one penny for every parcel consigned by the ferry:

Provided that between the hours of half-past eight in the evening and half-past five in the morning the toll which may be demanded and taken as aforesaid may be double the amount hereinbefore mentioned.

Ferry tolls
to be charged
equally.

23. The ferry tolls shall be at all times charged equally to all persons and after the same rate in respect of all

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passengers and small parcels of a like description conveyed in the same class of vessel or boat and under the like circumstances and no reduction or advance in any such tolls shall be made either directly or indirectly in favour of or against any particular person using the ferry. A.D. 1919.

24. The ferry tolls shall be paid to such persons and at such places upon or near to the landing stages or upon the vessels or boats and in such manner and under such regulations as the Corporation shall by notice to be annexed to the list of ferry tolls appoint. Taking and recovery of tolls.

25. A list of all the ferry tolls from time to time appointed by the Corporation to be taken shall be published by the same being printed and exhibited in some conspicuous place on the toll gates or toll houses or places where such tolls shall be payable. List of tolls to be printed and exhibited.

26. No ferry tolls shall be demanded or taken by the Corporation during any time at which the list of ferry tolls hereinbefore directed to be exhibited shall not be so exhibited and if any person wilfully pull down deface or destroy any such list of tolls he shall forfeit a sum not exceeding five pounds for every such offence. Tolls to be taken only while list exhibited.

27. Upon payment of the ferry tolls all persons shall be entitled to use the ferry subject to the byelaws and regulations in that behalf from time to time made by the Corporation under this Act. Ferry to be free on payment of tolls.

28. If any person knowingly and wilfully fails to pay the ferry toll due from him every person so offending shall for every such offence be liable to a penalty not exceeding twenty shillings. Penalty on non-payment of ferry tolls.

29. In connexion with the ferry undertaking the Corporation may make such reasonable charges as they think fit for the use of sheds and other buildings works and conveniences provided by them for the storage and accommodation of small parcels bicycles and other things and for the use of the ferry landing-places and slips by persons landing thereat from boats other than the ferry boats of the Corporation and the amount of such charges shall be recoverable in like manner as ferry tolls. Power to charge for accommodation in connexion with ferry.

A.D. 1919.

Power to
enter into
composition
for payment
of tolls.

30. The Corporation may enter into a composition with any person with respect to the payment of any ferry tolls authorised by this Act but so that no preference be in any case given to any person.

Exemption
of officers
from ferry
tolls.

31. Officers or men in the employ of the commissioners officers of police and lifeboatmen in the execution of their duty shall at all times have free ingress and egress to from and over the landing-places of the Corporation and shall be at liberty to pass and re-pass without payment by the vessels and boats used for the purposes of the ferry undertaking.

Exemption
from tolls in
case of
persons in
service of
Crown &c.

32. Without prejudice to any existing rights of His Majesty and save as provided by the Army Act nothing in this Act shall extend to authorise any tolls to be demanded or received from any person when on duty in the service of the Crown or for any goods the property of or when being used in the service of the Crown or returning after being so used or from any police officer acting in the execution of his duty or for any mail bag as defined by the Post Office Act 1908 If any person wilfully and with intent to defraud claims or takes the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable on summary conviction to a fine not exceeding ten pounds.

Byelaws as
to ferry.

33. The Corporation may subject to the provisions of this Act make alter repeal vary amend and enforce byelaws with respect to the ferry undertaking for all or any of the purposes following (that is to say) :—

- (a) For regulating controlling and limiting the use of the vessels boats and buildings used for the purposes of the ferry undertaking;
- (b) For preventing the commission of nuisances in or upon the ferry undertaking or the vessels or boats used for the purposes thereof;
- (c) For preserving the vessels boats and buildings and conveniences and preventing injuries and damage to the same;
- (d) For regulating the duties and conduct of all persons and the officers and servants of the Corporation who shall be employed in and about the ferry undertaking and in and about the vessels or boats used for the purposes thereof;

- (e) For regulating the conveyance of passengers and small parcels in or upon any vessels or boats and the embarkation and disembarkation of the same respectively and for prohibiting the embarkation of any goods in any vessels or boats used for the purposes of the ferry undertaking which may in the opinion of the Corporation be injurious to or prejudicially affect the use of such vessels and boats or the traffic to be carried therein; A.D. 1919.
- (f) For regulating and controlling or preventing if thought fit the fastening or mooring of vessels or boats of every description to any of the landing-places moorings or works of the Corporation and the embarkation and disembarkation of persons at such landing-places from vessels or boats other than the ferry boats of the Corporation;
- (g) For preventing persons navigating vessels or boats from negligently or wilfully obstructing the working of the ferry undertaking and the vessels or boats used for the purposes thereof and for preventing persons with boats horses carriages or otherwise negligently or wilfully obstructing the approaches to the ferry and ferry buildings Provided that nothing in any byelaws made under this section shall prevent the necessary working of the dredgers of the commissioners.

34. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act Provided that the confirming authority in respect of such byelaws shall be the Board of Trade. General provisions as to byelaws.

PART V.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

35.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred Power to borrow.

A.D. 1919. to as "the prescribed period") mentioned in the third column thereof (namely) :—

1.	2.	3.
Purpose.	Amount.	Period.
(a) For the purchase of the ferry undertaking of the commissioners.	£ 500	Sixty years from the date of borrowing.
(b) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board.

(3) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the revenue of the ferry undertaking and the borough fund and the borough rate.

Mode of raising money.

36. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) of that Act.

Provisions of Public Health Act 1875 as to mortgages to apply.

37. The following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say) :—

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

Mode of payment off of money borrowed.

38. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of prin-

cipal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months from the date of borrowing. A.D. 1919.

39.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either— Sinking fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal yearly or half-yearly sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Local Government Board may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate

A.D. 1919. during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of

which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed. A.D. 1919.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

40. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection of lender from necessity of inquiry.

41.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole. Appointment of receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

42. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable. Application of money borrowed.

43. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts Audit of accounts.

A.D. 1919. — kept of sums of money received and paid under that Act shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Power to re-
borrow.

44.—(1) The Corporation shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Return to
Local
Government
Board as to
repayment
of debt.

45.—(1) The town clerk of the borough shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in

respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

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(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

46. If any money is payable to a mortgagee being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Receipt in case of persons not sui juris.

A.D. 1919.
Revenue and
deficiency in
respect of
ferry under-
taking.

47.—(1) The Corporation shall apply all money received by them on account of the revenue of the ferry undertaking in the manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the ferry undertaking;

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of such undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of such undertaking;

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of such undertaking;

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to one thousand pounds which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the ferry undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of such undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the revenue of the ferry undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the ferry undertaking shall be made good out of the borough fund and the next

borough rate to be made by the Corporation shall be increased so far as may be necessary to raise money to recoup to the borough fund the amount so defrayed out of that fund. A.D. 1919.

48. The lease dated the twelfth day of December one thousand nine hundred and eighteen and made between the commissioners of the one part and the Corporation of the other part as amended and set forth in the Second Schedule to this Act and everything done and to be done by the Corporation in pursuance thereof is hereby ratified and confirmed. Confirmation of scheduled lease.

49. Nothing in this Act shall extend or be construed to prejudicially affect any estate right power privilege or exemption of the Crown. Crown rights.

50. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or borough rate or out of money to be borrowed under the powers of this Act for the purpose. Costs of Act.

A.D. 1919. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I.

Containing particulars of the enactments which are wholly repealed by section 14 of the foregoing Act.

Title of Act.	Section.
The Hartlepool Port and Harbour Act 1855.	82. Power to make landing-places at ferry and establish boats thereat.
	101. Ferry tolls.
	102. Ferry tolls to be charged equally.
	103. Ferry to be free on payment of tolls.
	104. Payment of ferry tolls.
	105. Penalty on non-payment of ferry tolls.
	106. Ferry tolls not to be demanded from officers of Customs &c.
	107. Penalties on toll collectors for offences herein named.
	108. Power to compound for ferry tolls.
	109. Power to lease ferry tolls.
	110. Fishermen and pilots to be employed at ferry and may be pensioned when disabled.
	111. Commissioners to make byelaws to regulate the use of ferry.
	112. Summary interference on breach of byelaw.
	113. Application of ferry tolls.
	114. Commissioners may establish an additional ferry between West Hartlepool and Hartlepool.
	115. Separate accounts of ferry tolls to be kept.
	116. Commissioners not to have any exclusive right of ferry.
The Hartlepool Port and Harbour Act 1869.	34. Section 108 of Act of 1855 extended to weekly payments for ferry tolls.

PART II.

A.D. 1919.

Containing particulars of the enactments which are repealed by section 14 of the foregoing Act so far as the same relate to the ferry undertaking of the commissioners.

Title of Act.	Section.
The Hartlepool Port and Harbour Act 1855.	70. Power to make works authorised by Act of 1851 continued.
	78. If works abandoned or fall into decay Admiralty may remove them at the expense of the commissioners.
	83. No jetties &c. to be built but by the commissioners.
	124. Tolls &c. vested in commissioners.
	125. Power to lease tolls &c.
	127. Collection of tolls &c.

THE SECOND SCHEDULE.

Referred to in section 48 of the foregoing Act.

THIS INDENTURE made the twelfth day of December nineteen hundred and eighteen between the HARTLEPOOL PORT AND HARBOUR COMMISSIONERS OF HARTLEPOOL in the county of Durham (hereinafter called "the Commissioners" which term shall include their successors and assigns) of the one part and the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF HARTLEPOOL in the said county (hereinafter called "the Corporation" which term shall include their successors and assigns) of the other part.

Witnesseth as follows:—

1. In consideration of the rents, or payments and covenants hereinafter reserved or made payable and contained the Commissioners in exercise of the powers conferred upon them by section 109 of the Hartlepool Port and Harbour Act 1855 and of all other powers in this behalf enabling them hereby demise unto the Corporation First all that ferry or right of carrying persons across the Hartlepool Harbour or channel between the landing-places on in within and adjoining the town wall of Hartlepool aforesaid and the landing-places on the opposite shore at the Middleton side of the ferry at the places marked on the plan hereto annexed Together with the rights and powers of

A.D. 1919. taking and recovering tolls and compounding for tolls conferred upon the Commissioners by the Hartlepool Pier and Port Act 1851 the Hartlepool Port and Harbour Act 1855 and the Hartlepool Port and Harbour Act 1869 or some or one of them Secondly all those pieces of land with the ferry-house turnstiles shelter-buildings stages steps walls piers and approaches situate on in within or adjoining the town wall of Hartlepool and on the opposite shore (being the Middleton side of Hartlepool aforesaid) (but excepting out of such lease the approach road on the Middleton side hereinafter referred to) and the Commissioners' interest in the boat-repairing slipway on that shore now rented by them from the North Eastern Railway Company all which demised premises are shown on the said plan and thereon coloured pink Together with a right of way or road for the Corporation their officers and servants and all persons going to or coming from the ferry jointly with the Commissioners their successors and assigns and others authorised by them and subject also to such rights of way if any as now exist over part thereof on in over and along the approach road on the Middleton side coloured green on the said plan attached hereto leading from the ferry landing on the west side to the public road marked "Road to Middleton" on the said plan And together with all boats oars moorings mooring-places gear stores and equipment belonging to and used and enjoyed by the Commissioners in working the said ferry To hold the said ferry and premises hereby demised unto the Corporation for the term of one year from the eighth day of November nineteen hundred and eighteen Yielding and paying therefor the yearly rent of twenty-five pounds payable by equal half-yearly instalments on the eighth day of May and the eighth day of November.

2. The Corporation hereby covenant with the Commissioners as follows:—

- (a) That they will during the said term pay the said rent to the Commissioners in manner aforesaid without any deduction:
- (b) That they will during the said term pay all rates taxes assessments and outgoings payable in respect of the demised premises or either of them or any part thereof except landlords' property tax and for the purposes of this provision such rates taxes assessments and outgoings shall be apportioned between the Commissioners and the Corporation:
- (c) That they will not assign or sublet the said demised premises or any part thereof without the consent in writing of the owner:
- (d) That they will during the said term maintain a service of boats crossing the said ferry not less convenient to the

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public than that provided by the Commissioners immediately before the execution of these presents. Provided that the Corporation may suspend the ferry when in consequence of the state of the weather or from any other sufficient cause it is necessary to suspend the working of the ferry boats:

- (e) That they will keep the ferry boats in good working order and in accordance with any requirements of the Board of Trade maintain them in their respective classes if any in Lloyd's Register of Shipping and in the event of the ferry boats or any of them being lost or becoming unfit for use as ferry boats will replace the same with boats of at least equally convenient size quality and character reasonable wear and tear and damage caused by fire or act of war excepted:
- (f) That they will keep the ferry-houses toll-houses turnstiles shelters buildings stages steps walls piers and approaches in good repair and condition reasonable wear and tear and damage caused by fire or act of war as specified in paragraph (g) hereof excepted:
- (g) That they will insure and keep insured in some office of repute the ferry-house or toll-house turnstiles shelter buildings stages steps walls and piers against the risk of fire in the sum of five hundred and fifty pounds and will insure and keep insured at Lloyd's under a Lloyd's policy or other policy the ferry boats and gear in the sum of three hundred pounds and will duly and regularly pay the premiums and duties in respect of such insurances and will apply any moneys recovered under the said policies in making good the loss covered thereby:
- (h) That they will not demand charge or take any tolls other than those prescribed by the special Acts of Parliament for the time being relating to the ferry:
- (i) That they will during the term hereby granted keep in a reasonable state of repair the road or way leading from the ferry landing on the west side to the public road marked "Road to Middleton" on the said plan:
- (j) That they will during the term hereby granted light and clean the low leading light on the East Ferry Tower so long as such light remains or is in use and will keep in efficient repair the wooden lighthouse in which the said low leading light is fixed and will also light and maintain the ferry light on the west tower of the ferry:

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(k) That they will at the end or sooner determination of the said term hereby granted peaceably deliver up to the Commissioners the said demised premises reasonable wear and tear and damage caused by fire or act of war excepted.

3. The Commissioners hereby covenant with the Corporation that the Corporation paying the rent and observing and performing the covenants hereinbefore reserved and contained shall peaceably and quietly enjoy the said demised premises and shall not be disturbed by any act of the Commissioners or any person claiming through under or in trust for them and that they will pay the cost of gas or other illuminant in the low leading light aforesaid and maintain the present particular burner and lamp therein or any substitute therefor.

4. If the Corporation commit or allow to be committed any breach of any of the covenants on their part hereinbefore contained or if the said rent hereinbefore reserved or any part thereof shall remain unpaid for twenty-eight days after the same shall become due it shall be lawful in any such case for the Commissioners to re-enter upon or re-enjoy the said demised premises or any part thereof in the name of the whole and thereupon the term hereby granted shall be determined.

In witness whereof the Commissioners and the Corporation have caused their respective common seals to be hereunto affixed the day and year first before written.

The common seal of the Hartlepool Port and
Harbour Commissioners was hereunto affixed }
in the presence of



HENRY WITHY
Chairman.

T. HARRY TILLY
West Hartlepool
Solicitor to the Commissioners.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

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